

ACCEPTANCE CERTIFICATE - HISTORIC PRESERVATION COMMISSION

HISTORIC PRESERVATION COMMISSION APPROVAL GIVEN AT A MEETING ON THE 8TH DAY OF MAY, A.D. 1979.

BY: WAYNE IVERSON, CHAIRPERSON

ACCEPTANCE CERTIFICATE - PLANNING AND ZONING COMMISSION

THIS PLAT USES, DENSITIES, STANDARDS, AND DEFINITIONS APPROVED BY THE PLANNING AND ZONING COMMISSION OF TELLURIDE, COLORADO, THIS 29TH DAY OF JUNE, A.D., 1979 FOR FILING WITH THE CLERK AND RECORDER OF THE COUNTY OF SAN MIGUEL. THIS PLAT IS HEREBY ADOPTED AS THE OFFICIAL PLAT FOR THE BACKMAN VILLAGE SUBDIVISION; TOWN OF TELLURIDE, COUNTY OF SAN MIGUEL, STATE OF COLORADO.

BY: WAYNE IVERSON, CHAIRPERSON

ACCEPTANCE CERTIFICATE BY THE TOWN COUNCIL OF THE TOWN OF TELLURIDE

THE TOWN COUNCIL OF THE TOWN OF TELLURIDE HEREBY APPROVES AND ACCEPTS ON THIS _____ DAY OF _____, 1979 THE BACKMAN VILLAGE SUBDIVISION, ALL AS SET FORTH ON PAGES 1 THROUGH 6 OF THIS PLAT INCLUDING THE RESTRICTIVE COVENANTS AND CONTRACT AS RECORDED HEREWITH AND FURTHER ACCEPTS FOR ANNEXATION INTO AND WITHIN THE MUNICIPAL LIMITS OF THE TOWN OF TELLURIDE THOSE PARCELS DEDICATED AS PHASE B ON PAGE 2 OF THIS PLAT. THE TOWN COUNCIL FURTHER ACCEPTS FOR DEDICATION TO THE TOWN OF TELLURIDE THE ROADS, UTILITIES AND EASEMENTS AS SET FORTH ON THIS PLAT, SUBJECT TO COMPLETION OF THE WORK WITHIN _____ MONTHS OF THIS DATE. UNTIL SUCH ACCEPTANCE BY THE TOWN FOR AND ON BEHALF OF THE PUBLIC, THE ROADS SHALL REMAIN PRIVATE ROADS, HOWEVER, INDIVIDUAL LOT OWNERS SHALL HAVE RIGHTS TO USE THEM AND LIKEWISE, FIRE PROTECTION, POLICE AND SCHOOL ENTITIES SHALL HAVE RIGHTS OF INGRESS AND EGRESS ACROSS SAID ROADS PRIOR TO THE TIME THAT THEY BECOME PUBLIC ROADS.

ATTEST: Carolyn Schaw DATE 6/29/79
TOWN CLERK

Donald R. Olson DATE 6/29/79
MAYOR

NOTE: THE TERM "UNIT" EXCEPT UNDER LOTS 48-B AND 47 SHALL BE UNDERSTOOD TO MEAN FAIR-MARKET UNITS. ANY EMPLOYEE HOUSING OR OTHER UNITS REQUIRED BY FUTURE TOWN ORDINANCES SHALL BE ADDED TO DENSITIES GIVEN BELOW.

LAND USES, DENSITIES, AND EASEMENTS FOR LOTS

- LOT 1. SINGLE FAMILY RESIDENCE, 0.058 ACRES
LOT 2. SINGLE FAMILY RESIDENCE, 0.076 ACRES WITH DRAINAGE EASEMENT OVER EASTERLY 7.50 FT.
LOT 3. SINGLE FAMILY RESIDENCE, 0.076 ACRES, WITH DRAINAGE EASEMENT OVER WESTERLY 7.50 FT.
LOTS 4, 5, 6, 7, 8, 9. SINGLE FAMILY RESIDENCES, EACH 0.058 ACRES.
LOT 10. SINGLE FAMILY RESIDENCE, 0.067 ACRES.
LOT 11. SINGLE FAMILY RESIDENCE, 0.072 ACRES, WITH DRAINAGE EASEMENT OVER EASTERLY 12.50 FT.
LOT 12. SINGLE FAMILY RESIDENCE, 0.059 ACRES, WITH DRAINAGE EASEMENT OVER WESTERLY 2.50 FT.
LOTS 13, 14, 15, 16, 17, 18, 19. SINGLE FAMILY RESIDENCES, EACH 0.059 ACRES.
LOT 20. SINGLE FAMILY RESIDENCE, 0.111 ACRES, WITH DRAINAGE EASEMENT OVER EASTERLY 15.00 FT.
LOTS 21, 22, 23, 24, 25, 26, 27, 28. SINGLE FAMILY RESIDENCES, EACH 0.058 ACRES.
LOT 29. SINGLE FAMILY RESIDENCE, WITH A UTILITY EASEMENT OVER THE WESTERLY 5 FT., 0.076 ACRES.
LOT 30. SINGLE FAMILY RESIDENCE, 0.079 ACRES.
LOT 31. SINGLE FAMILY RESIDENCE, 0.072 ACRES.
LOT 32. SINGLE FAMILY RESIDENCE, 0.066 ACRES.
LOT 33. SINGLE FAMILY RESIDENCE, 0.060 ACRES.
LOT 34. 131 LODGING OR MULTIFAMILY UNITS OR 112 LODGING OR MULTIFAMILY UNITS WITH 21,000 SQ. FT. COMMERCIAL, 2.941 ACRES
LOT 35. 12 MULTIFAMILY UNITS, 0.218 ACRES, WITH UTILITY EASEMENT ACROSS THE SOUTHERLY 35.00 FT.
LOT 36. 17 MULTIFAMILY UNITS, OR 56 LODGING UNITS, OR 48 LODGING UNITS WITH 6,460 SQ. FT. COMMERCIAL, 0.889 ACRES.
LOT 37. 15 MULTIFAMILY UNITS OR 23 LODGING UNITS OR 20 LODGING UNITS WITH 3,510 SQ. FT. COMMERCIAL, 0.404 ACRES, WITH A UTILITY EASEMENT OVER THE SOUTHERLY 7.50 FT.
LOT 38. 5 MULTIFAMILY UNITS, 0.204 ACRES.
LOT 39. 12 MULTIFAMILY UNITS OR 18 LODGING UNITS, 0.341 ACRES, WITH A RIGHT OF WAY AND UTILITY EASEMENT OVER THE EASTERLY 15 FT. AND A SIDEWALK EASEMENT OVER THE WESTERLY 5 FT. AND THE NORTHERLY 5 FT.
LOT 40. 12 MULTIFAMILY UNITS OR 18 LODGING UNITS, 0.338 ACRES, WITH A RIGHT OF WAY AND UTILITY EASEMENT OVER THE EASTERLY 15 FT. AND A SIDEWALK EASEMENT OVER THE WESTERLY 5.00 FT.
LOT 41. 13 MULTIFAMILY UNITS OR 19 LODGING UNITS OR 17 LODGING UNITS WITH 2,900 SQ. FT. COMMERCIAL, 0.355 ACRES.
LOT 42. 15 MULTIFAMILY UNITS OR 23 LODGING UNITS OR 20 LODGING UNITS WITH 3,510 SQ. FT. COMMERCIAL, 0.404 ACRES, WITH A UTILITY EASEMENT OVER THE SOUTHERLY 7.50 FT.
LOT 43. 15 MULTIFAMILY UNITS OR 22 LODGING UNITS OR 19 LODGING UNITS WITH 3,460 SQ. FT. COMMERCIAL, 0.424 ACRES.
LOT 44. 21 MULTIFAMILY UNITS OR 31 LODGING UNITS OR 27 LODGING UNITS WITH 4,890 SQ. FT. COMMERCIAL, 0.561 ACRES, WITH A UTILITY EASEMENT OVER THE NORTHERLY 7.50 FT.
LOT 45. 12 MULTIFAMILY UNITS OR 18 LODGING UNITS OR 15 LODGING UNITS WITH 2,750 SQ. FT. COMMERCIAL, 0.307 ACRES, WITH A SIDEWALK EASEMENT OVER THE WESTERLY 5.00 FT.
LOT 46. 12 MULTIFAMILY UNITS OR 18 LODGING UNITS OR 15 LODGING UNITS WITH 2,580 SQ. FT. COMMERCIAL, 0.316 ACRES, SUBJECT TO AN EASEMENT OVER THE EASTERLY PORTION BEGINNING AT A LINE 15 FT. WESTWARD FROM THE PROPOSED NEW WEST BANK OF CORONET CREEK AS SHOWN ON SHEET 5 OF THIS PLAT.
LOT 47. 50 EMPLOYEE HOUSING UNITS TRANSFERABLE TO ADJACENT LOTS BY REPLAT AND 25,000 SQ. FT. BASE FACILITY, 2.294 ACRES, WITH UTILITY EASEMENT OVER THE NORTHERLY 15'.
NOTE. LIVING UNIT DENSITIES AS STATED ABOVE AND UNDER PHASE B MAY BE TRANSFERRED TO ADJACENT LOTS WITHIN THE SUBDIVISION AND UNDER THE SAME OWNERSHIP SUBJECT TO WRITTEN PERMISSION FROM TELCO. COMMERCIAL AREAS ARE NOT TRANSFERABLE, EXCEPT LOTS 34 AND 34-B.
TRACT A. ENTRY PARK, 0.048 ACRES.
TRACT B. QUIT CLAIM FROM TELCO TO EAST-WEST DEVELOPMENT, 0.017 ACRES.
TRACT C. QUIT CLAIM FROM EAST-WEST DEVELOPMENT TO TELCO. QUIT CLAIM FROM EAST-WEST DEVELOPMENT TO THE TOWN OF TELLURIDE (0.042 ACRES).
TRACT D. DEDICATED TO THE TOWN OF TELLURIDE FOR RIVER PARK, 0.540 ACRES. SUBJECT TO VARIOUS EASEMENTS FOR EXISTING UTILITIES AND STRUCTURES. DEDICATION PENDING PHASE B APPROVAL.
TRACT E. TO BE DEDICATED TO THE TOWN OF TELLURIDE BY TELCO FOLLOWING ACQUISITION FROM SIMONIUS, VISCHER & CO., 0.593 ACRES 30 FT. ACCESS RIGHT RESERVED BY TELCO.
TRACT F. QUIT CLAIM FROM JESSE MC DEMOTT TO TELCO, QUIT CLAIM FROM TELCO TO THE TOWN OF TELLURIDE (0.004 ACRES).
TRACT G. PRIVATE ACCESS ROAD. QUIT CLAIM FROM THE TELLURIDE COMPANY TO SIMONIUS-VISCHER, 0.154 ACRES.
TRACT H. FIRE LANE, RIGHT OF WAY, AND PEDESTRIAN ROUTE, 0.191 ACRES. QUIT CLAIM TO TELLURIDE LODGE.
TRACT I. PARKING ACCESS. QUIT CLAIM FROM TELCO TO TELLURIDE LODGE, 0.018 ACRES.
TRACT J. ENTRY PARK, SPECIAL PURPOSE, 0.077 ACRES.
TRACT K. ADDITION TO S. DAVIS STREET, 0.034 ACRES, DEDICATED TO THE TOWN OF TELLURIDE.
TRACT L. QUIT CLAIM FROM TELCO TO TELLURIDE LODGE, 0.065 ACRES.
TRACT M. QUIT CLAIM FROM TELCO TO TELLURIDE LODGE, 0.069 ACRES.

SUMMARY OF ACREAGES

RESIDENTIAL - LOTS 1-33	2.097	TRACT A	.048
MULTIFAMILY - LOTS 35, 37, 38	0.698	TRACT B	.017
MULTIFAMILY OR LODGING ONLY - LOTS 39 & 40	0.679	TRACTS D & E - RIVER PARK	1.133
FULL DEVELOPMENT	6.197	TRACT G - PRIVATE ACCESS ROAD	.154
BASE FACILITY	2.294	TRACT H - PEDESTRIAN/FIRE LANE	.191
TOTAL LOTS	11.965	TRACT I - ACCESS	.018
		TRACT J - SPECIAL USE	.077
		TRACTS K & L	.134
		TOTAL TRACTS	1.772
		TOTAL LOTS & TRACTS, LESS ROAD	13.737
		TOTAL ROAD, INCLUDING TRACT N	4.247
		TOTAL SUBDIVISION ACREAGE	17.984

RIGHT OF SUBSTITUTION

FOR LOTS 36, 41, 42, 43, 44, 45, 46 & 49 A USE BY RIGHT IS HEREBY GRANTED TO PROVIDE A VARIOUS AND MULTIPLE USE BY SUBSTITUTING MULTIFAMILY UNITS, LODGING UNITS AND COMMERCIAL SQUARE FOOTAGE ACCORDING TO THE FOLLOWING EQUATIONS.

2 MULTIFAMILY UNITS = 3 LODGING UNITS
1 LODGING UNIT = 1,300 SQ. FT. COMMERCIAL
1 MULTIFAMILY UNIT = 1,800 SQ. FT. COMMERCIAL
HOWEVER, COMMERCIAL SQUARE FOOTAGE SHALL NOT EXCEED STATED MAXIMUMS.

CERTIFICATION OF DEDICATION AND OWNERSHIP - TELLURIDE COMPANY

KNOW ALL PERSONS BY THESE PRESENTS THAT THE TELLURIDE COMPANY, A COLORADO CORPORATION, THE OWNER IN FEE SIMPLE OF ALL THE REAL PROPERTY DESCRIBED AS FOLLOWS:

BEGINNING AT A POINT FROM WHICH CORNER NO. 10 OF THE DAKOTA PLACER MS2238 (A POINT COTERMINOUS WITH THE SOUTHWEST CORNER OF THE MONTANA PLACER MS958, LATER KNOWN AS THE WEST TELLURIDE ADDITION, FROM WHICH POINT THE NORTHEAST CORNER OF BLOCK 21, WEST TELLURIDE, BEARS N. 73°01'19" E., 1303.83 FT.) BEARS S. 10°15' W., 212.00 FT.

THENCE N. 10°15' E., 1057.97 FT. TO THE SOUTHERLY BOUNDARY OF THE COLORADO STATE HIGHWAY 145 RIGHT OF WAY; THENCE S. 44°17' E., 465.48 FT.; THENCE S. 19°45' 12" W., 775.98 FT.; THENCE S. 70°14' 48" E., 440.00 FT.; THENCE N. 19°45' 12" E., 565.38 FT. TO THE SOUTHERLY BOUNDARY OF SAID RIGHT OF WAY; THENCE SOUTHEAST ALONG A CURVE TO THE LEFT HAVING A RADIUS OF 1005 FT., AND A CHORD WHICH BEARS S. 54°14' 57" E., 186.81 FT.; THENCE S. 17°54' W., 308.90 FT.; THENCE S. 72°06' E., 216.07 FT. THENCE S. 17°54' W., 127.15 FT.; THENCE S. 17°54' W., 15.00 FT.; THENCE S. 72°06' E., 75.00 FT.; THENCE S. 17°54' W., 200.00 FT.; THENCE N. 71°56' W., 170.00 FT.; THENCE N. 56°30' W., 240.00 FT.; THENCE N. 61°31' 16" W., 822.52 FT. TO THE POINT OF BEGINNING, CONTAINING 42,524 ACRES, MORE OR LESS.

HAS BY THESE PRESENTS LAID OUT, PLATTED AND SUBDIVIDED THE SAME INTO LOTS AND TRACTS AS SHOWN HEREON INCLUDING STREETS AND ALLEYS, THE PUBLIC LANDS AND EASEMENTS SHOWN HEREON FOR DRAINAGE AND UTILITY PURPOSES TO WIT ELECTRICITY WATER SEWER AND TELEVISION CABLE ONLY; AND DOES FURTHER STATE THAT THE LOTS IN THIS SUBDIVISION SHALL BE SUBJECT TO THE VARIOUS PERTINENT PROTECTIVE COVENANTS, AS AMENDED, FILED AND RECORDED FOR THIS SUBDIVISION IN THE OFFICE OF THE CLERK AND RECORDER OF SAN MIGUEL COUNTY, COLORADO.

EXECUTED THIS 29th DAY OF June, A.D. 1979.

OWNER: THE TELLURIDE COMPANY, A COLORADO CORPORATION.

BY: PRESIDENT Ronald D. Olson

ATTEST: Robert A. Peterson

CERTIFICATION OF OWNERSHIP - SIMONIUS, VISCHER & CO.

KNOW ALL PERSONS BY THESE PRESENTS THAT SIMONIUS, VISCHER & CO., A SWISS LIMITED PARTNERSHIP, THE OWNER IN FEE SIMPLE OF ALL THE REAL PROPERTY DESCRIBED AS FOLLOWS:

BEGINNING AT CORNER NO. 10 OF THE DAKOTA PLACER MS2238 (A POINT COTERMINOUS WITH THE SOUTHWEST CORNER OF THE MONTANA PLACER MS958, LATER KNOWN AS THE WEST TELLURIDE ADDITION, FROM WHICH POINT THE NORTHEAST CORNER OF BLOCK 21, WEST TELLURIDE, BEARS N. 73°01'19" E., 1303.83 FT.).

THENCE N. 10°15' E., 212.00 FT.; THENCE S. 69°31' 16" E., 822.52 FT.; THENCE S. 56°30' E., 153.82 FT.; THENCE S. 17°54' W., 221.60 FT.; THENCE S. 72°06' E., 210.00 FT.; THENCE S. 17°54' W., 48.48 FT.; THENCE N. 65°15' W., 1159.90 FT. TO THE POINT OF BEGINNING CONTAINING 5.460 ACRES, MORE OR LESS, AS DESCRIBED BY LOTS AND BLOCKS AND VACATED STREETS AND ALLEYS IN BOOK 353, PP. 504-5 IN THE RECORDS OF THE CLERK AND RECORDER OF SAN MIGUEL COUNTY, COLORADO.

HAS BY THESE PRESENTS LAID OUT, PLATTED AND SUBDIVIDED THE SAME INTO LOTS AND TRACTS AS SHOWN HEREON, PROVIDED THAT, BY THESE PRESENTS, SIMONIUS, VISCHER & CO. HAS NOT DEDICATED ANY LAND TO THE TOWN OF TELLURIDE FOR PUBLIC USE.

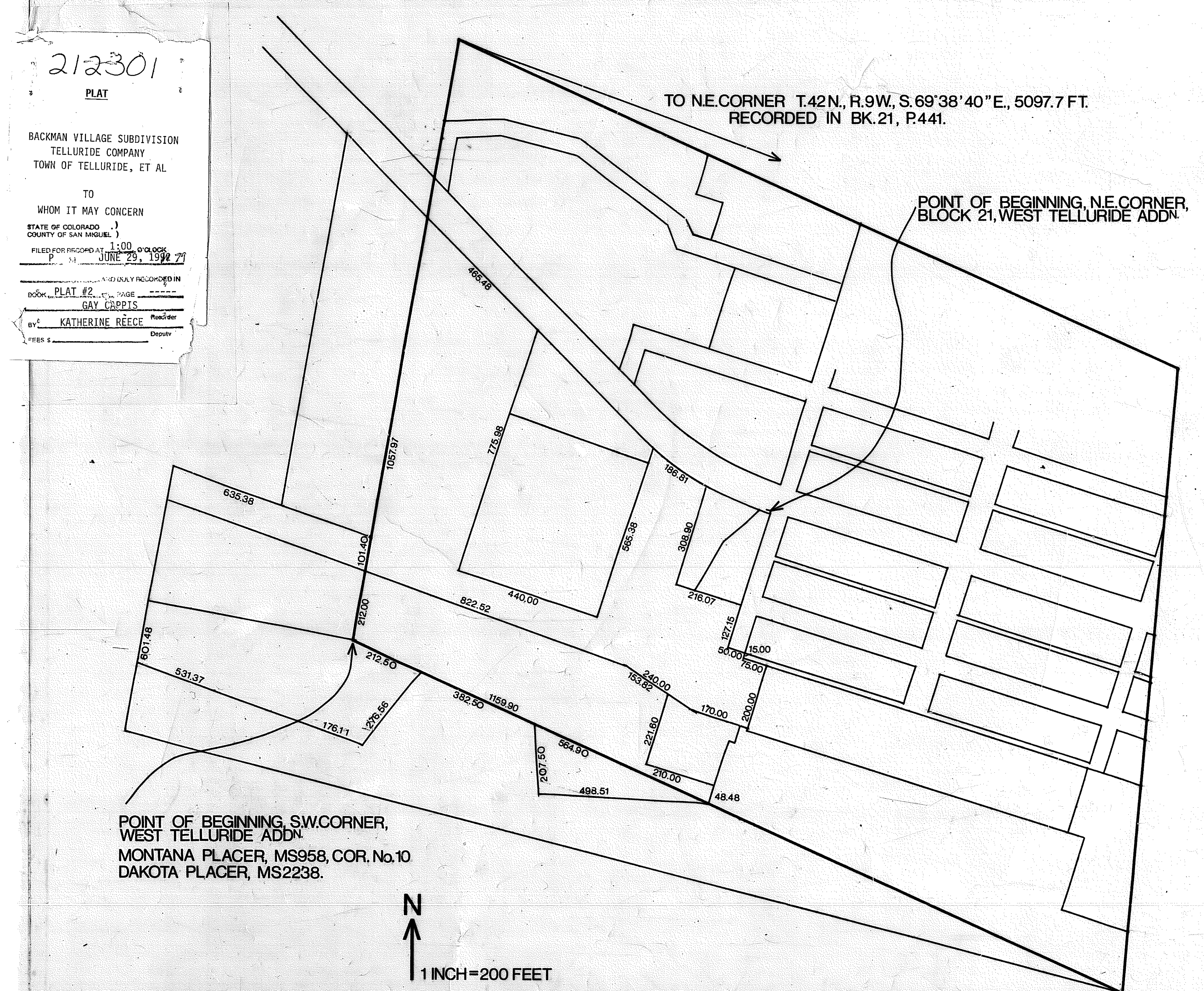
EXECUTED THIS 29th DAY OF June, A.D. 1979.

OWNER: SIMONIUS, VISCHER & CO., A SWISS LIMITED PARTNERSHIP.

BY: Robert A. Peterson

SIMONIUS-VISCHER & CO., BY ITS ATTORNEY IN FACT

A SWISS LIMITED PARTNERSHIP



POINT OF BEGINNING, SW CORNER, WEST TELLURIDE ADDN., MONTANA PLACER, MS958, COR. No. 10 DAKOTA PLACER, MS2238.

N
1 INCH = 200 FEET

OFFICIAL PLAT

BACKMAN VILLAGE SUBDIVISION

TOWN OF TELLURIDE ~ COUNTY OF SAN MIGUEL ~ STATE OF COLORADO

DEFINITIONS

1. COMMERCIAL AREA ALLOWANCE IS INTENDED TO PROVIDE FOR THE BROAD RANGE OF COMMERCIAL OPERATIONS AND SERVICES OF BENEFIT TO THE RESIDENTS OF, AND VISITORS TO, THE TOWN OF TELLURIDE, INCLUDING BUT NOT LIMITED TO WHOLESALE AND RETAIL ESTABLISHMENTS, OFFICES FOR THE CONDUCT OF A BUSINESS OR PROFESSION, STUDIOS FOR THE PRACTICE OF ARTS AND CRAFTS, AND DENTAL AND MEDICAL CLINICS. COMMERCIAL AREAS ALLOWED ARE BASED PRO RATA ON REDUCED UNITS OF LODGING SO THAT FOR A LOT DESCRIBED AS 'X' LODGING UNITS, OR Y LODGING UNITS WITH Z SQ. FT. COMMERCIAL, FOR EACH UNIT REDUCTION IN LODGING BETWEEN X AND Y THERE IS Z DIVIDED BY (X MINUS Y) SQUARE FEET OF COMMERCIAL USE ALLOWED. COMMERCIAL AREAS SHALL NOT OPERATE AS ACTIVE BUSINESSES IN TRADE UNTIL SUCH TIME AS THE TOWN OF TELLURIDE SHALL ISSUE A CERTIFICATE OF OCCUPANCY FOR THE ATTACHED LODGING UNITS.
2. SINGLE FAMILY RESIDENCES SHALL BE DESIGNED SO THAT THEY MAY NOT BE DIVISIBLE INTERNALLY BY DOORS, PARTITIONS OR OTHER MEANS TO PROVIDE MORE THAN ONE UNIT OF ACCOMMODATION EQUIPPED WITH SEPARATE KITCHEN OR BATHROOM FACILITIES, THIS DEFINITION SHALL NOT HOWEVER PRECLUDE THE USE OF A SINGLE FAMILY RESIDENCE AS LODGING ROOMS WHICH SHARE COMMON KITCHEN OR BATHROOM FACILITIES.
3. LODGING SHALL BE UNITS OF ACCOMMODATION WHICH ARE UNDER THE OWNERSHIP AND MANAGEMENT OF SINGLE INDIVIDUALS OR LEGAL ENTITIES. THIS DEFINITION SHALL NOT HOWEVER PRECLUDE THE LEASING OR SUB-LETTING OF MANAGEMENT BY THE OWNER(S) SO LONG AS THE AGENCY OF MANAGEMENT INCLUDES ALL UNITS WITHIN THE LOT.
4. MULTIFAMILY UNITS SHALL CONSIST OF SINGLE FAMILY RESIDENCES AS DEFINED ABOVE BUT UNITED WITHIN ONE OR MORE SEPARATE BUILT STRUCTURES ON A LOT. OWNERSHIP OF UNITS MAY BE BY INDIVIDUALS, GROUPS, LEGAL ENTITIES OR AS CONCERNING OR OTHER COOPERATIVE MEANS. INDIVIDUAL MULTIFAMILY UNITS MAY NOT BE SOLD, LEASED, SUB-LET OR RENTED AS DIVIDED OR DIVISIBLE INTO MORE THAN ONE UNIT.
5. THE SPECIAL PURPOSE LOT, TRACT J. SHALL BE RESERVED FOR SOME CELEBRATORY, PUBLIC, OR CHARITABLE USE AS MAY BE LATER AGREED BETWEEN THE TELLURIDE COMPANY AND THE TOWN OF TELLURIDE. AFTER A PERIOD OF FIVE (5) YEARS FROM THE FILING OF THIS PLAT, IF SUCH AGREEMENT HAS NOT BEEN REACHED, TRACT J SHALL BECOME A SINGLE FAMILY RESIDENCE LOT AS DEFINED ABOVE.
6. ENTRY PARK SHALL BE RESERVED FOR LANDSCAPING, PLANTING AND THE ERECTION OF INFORMATIONAL SIGNS, SEATING AND TRASH CONTAINERS ONLY.
7. RIVER PARK SHALL BE LAND ADJACENT TO THE SAN MIGUEL RIVER TO BE DEDICATED TO THE TOWN OF TELLURIDE AS PUBLIC LAND BUT ONLY, SUBJECT TO THE REASONABLE CONTROL OF THE TOWN OF TELLURIDE, FOR THE FREE PASSAGE OF THE PUBLIC ON FOOT, ON SKIS OR ON BICYCLES THROUGH A LANDSCAPED, PLANTED AND MAINTAINED PARK IN WHICH NO BUILDINGS OR STRUCTURES MAY BE ERECTED EXCEPT SEATING AND TRASH CONTAINERS.
8. EMPLOYEE HOUSING SHALL BE APARTMENTS AVAILABLE FOR RENTAL TO EMPLOYEES OF THE TELLURIDE COMPANY OR OTHER EMPLOYEES OF LOCAL COMMERCIAL CONCERNS. SUCH UNITS MAY NOT BE CONDOMINIUMISED, MAY NOT BE RENTED OR LEASED TO OTHER THAN NONA FIVE EMPLOYEES, AND MAY NOT BE SOLD, GIVEN OR TRADED WITHOUT THIS STIPULATION REMAINING IN FORCE.
9. BASE FACILITY SHALL BE AN IMPROVEMENT THE USE OF WHICH MAY BE DEDICATED TO ANY USE AND PURPOSE PERMITTED WITHIN THE CURRENT COMMERCIAL ZONE INCLUDING BUT NOT LIMITED TO RETAIL SALES, BUSINESSES, RESTAURANT AND BAR OPERATIONS, OFFICE SPACE, SKI SCHOOL, MEETING ROOMS, EMERGENCY MEDICAL VEHICLES, NURSERY AND OTHER SUCH USES AND ACTIVITIES ASSOCIATED WITH THE OPERATION OF A SKI AREA.

CERTIFICATE OF DEDICATION AND OWNERSHIP

KNOW ALL PERSONS BY THESE PRESENTS THAT THE TELLURIDE COMPANY, COLORADO CORPORATION, THE OWNER IN FEE SIMPLE OF ALL THE REAL PROPERTY DESCRIBED AS FOLLOWS:

PARCEL 1
BEGINNING AT A POINT FROM WHICH CORNER #10 OF DAKOTA PLACER MS 2238, A POINT COTERMINOUS WITH THE SW CORNER OF MONTANA PLACER (WEST TELLURIDE ADDITION), BEARS S 10° 15' W 313.40 FT.
THENCE N 70° 11' 22" W 635.38 FT.; THENCE S 10° 00' 03" W 401.48 FT.; THENCE S 70° 51' 57" E 531.37 FT.; THENCE S 69° 18' 39" E 176.11 FT.; THENCE N 38° 37' 59" E 216.56 FT.; THENCE N 65° 15' 00" W 212.50 FT.; THENCE N 10° 15' 40" E 313.40 FT. TO THE POINT OF BEGINNING, CONTAINING 9.472 ACRES, MORE OR LESS.

PARCEL 2
BEGINNING AT A POINT FROM WHICH CORNER #10 OF DAKOTA PLACER MS 2238, A POINT COTERMINOUS WITH THE SW CORNER OF MONTANA PLACER (WEST TELLURIDE ADDITION), BEARS N 65° 15' W 595.00 FT.
THENCE S 4° 15' 00" E 207.50 FT.; THENCE S 86° 35' 58" E 498.51 FT.; THENCE N 65° 15' 00" W 564.90 FT. TO THE POINT OF BEGINNING, CONTAINING 1.177 ACRES, MORE OR LESS.

HAS BY THESE PRESENTS LAID OUT, PLATTED AND SUBDIVIDED THE SAME INTO LOTS AS SHOWN HEREON INCLUDING STREETS AND ALLEYS, THE PUBLIC LANDS AND EASEMENTS SHOWN HEREON FOR DRAINAGE RIGHT OF WAY AND UTILITY PURPOSES TO WIT ELECTRIC WATER SEWER AND TELEVISION CABLE ONLY; AND DOES FURTHER STATE THAT THE LOTS IN THIS SUBDIVISION SHALL BE SUBJECT TO THE VARIOUS PERTINENT PROTECTIVE COVENANTS, AS AMENDED, FILED AND RECORDED FOR THIS SUBDIVISION IN THE OFFICE OF THE CLERK AND RECORDER OF SAN MIGUEL COUNTY, COLORADO.

EXECUTED THIS 29th DAY OF June, A.D., 1979.

OWNER: THE TELLURIDE COMPANY, A COLORADO CORPORATION

BY: PRESIDENT Ronald D. Olson

ATTEST: Robert A. Peterson

LAND USES, DENSITIES, AND EASEMENTS FOR LOTS

- LOT 34-B. 45 LODGING OR MULTIFAMILY UNITS OR 39 LODGING OR MULTIFAMILY UNITS WITH 7200 SQ FT COMMERCIAL, 1.177 ACRES.
- LOT 48-A. INTERIM PADDOCK AND STABLES, FUTURE PARKING, RIGHT OF WAY, AND UTILITY USES, 1.458 ACRES SUBJECT TO A NON-EXCLUSIVE ACCESS UTILITY EASEMENT 10 FT. ON BOTH SIDES OF ALL PUBLIC UTILITIES EXISTING AT THE TIME OF THIS FILING AND AN EASEMENT FOR BUILDING DESCRIBED IN AN AGREEMENT WITH THE TOWN OF TELLURIDE ATTACHED HERETO.
- LOT 48-B. PARKING, POSSIBLE FUTURE PARKING STRUCTURE AND 120 UNITS OF EMPLOYEE HOUSING TRANSFERABLE TO ADJACENT LOTS BY REPLAT, 3.747 ACRES.
- LOT 49. 150 LODGING UNITS OR 129 LODGING UNITS WITH 25,000 SQ. FT. COMMERCIAL, 4.267 ACRES.

TOTAL ACREAGE 10.649

MAHONEY CIRCLE (FUTURE)

.202 ACRES FROM LOT 47, PHASE A
.164 ACRES FROM LOT 48, PHASE B
.366 ACRES TOTAL

COUNTY RECORDER'S CERTIFICATE #212301

ACCEPTED FOR FILING IN THE OFFICE OF THE CLERK AND RECORDER OF SAN MIGUEL COUNTY, COLORADO, THIS 29th DAY OF JUNE, 1979 IN PLAT BOOK 2 PAGES 1-10, AND RECORDED CONCURRENTLY HERewith THIS CONTRACT IN BOOK 380, PAGES 488-492. THIS 29th DAY OF JUNE, 1979, AND THE RESTRICTIVE COVENANTS RECORDED AT BOOK 380, PAGE 488 THIS 29th DAY OF JUNE, 1979, BOOK 380, PAGES 488-492.
Ray Capone DATE 6/29/79
SAN MIGUEL COUNTY CLERK

SHEET INDEX

1. COVER SHEET, LOCATION MAP
2. SURVEY SHEET, SURVEYOR'S CERTIFICATE
3. EXISTING TOPOGRAPHY AND GEOLOGIC FEATURES
4. UTILITY PLAN AND EASEMENTS
5. GRADE AND FILL PLAN, ROAD STATION KEY
6. ROAD PROFILES AND SECTIONS

CURVE DATA TABLE

C-2	R-1005', D-4°37'57", A-81.26, CH- N 46°35'56" W 81.24.
C-3	R-1005, D-1°49' 12", A-31.92, CH- N 49°54'17" W 31.92.
C-4	R- 1005, D-1°47'26" A-31.41, CH- N 51°37'28" W, 31.40.
C-5	R-1005, D-1°46'15" A-31.06, CH- N 53°24'18" W, 31.06.
C-6	R-1005, D-1°45'12" A-30.75, CH- N 55°10'01" W, 30.75.
C-7	R-1005, D-1°46'20", A-31.08, CH- N 56°55'47" W, 31.08.
C-8	R-1005, D-1°45'31", A-30.85, CH- N 58°38'59" W, 30.85.
C-9	R-1005, D-1°43'42" A-38.88, CH- N 64°06'41" W, 38.88.
C-10	R-1005, D-1°40'55", A-29.50, CH- N 71°13'00" W, 29.50.
C-12	R-236.91', D-20°18'18", A-87.06, CH- N 55°16'55" W, 33.52.
C-13	R-236.91', D-28°13'02", A-116.68, CH- N 66°20'39" E, 115.50.
C-14	R-308.43', D-22°44'17", A-68.57, CH- N 58°56'20" E, 68.43.
C-15A	R-308.43', D-11°24'02", A-61.37, CH- N 70°48'29" E, 61.27.
C-15B	R-308.43', D-22°01'34", A-118.57, CH- N 87°32'06" E, 117.84.
C-19	R-291.91', D-5°53'55", A-30.04, CH- N 73°11'57" W, 30.04.
C-20	R-291.91', D-38°42'59", A-197.25, CH- N 84°29'50" E, 193.52.
C-21	R-291.91', D-12°46'36", A-65.10, CH- N 58°45'02" E, 64.96.
C-22	R-253.43', D-44°09'40", A-195.33, CH- N 74°26'25" E 190.53.
C-24	R-12', D-90°, A-18.85', T-12', CH-16.97, N 27°06' W.
C-26	R-12', D-90°, A-18.85', T-12', CH-16.97.
C-27	R-11.62', D-91°51'12", A-18.63, T-12', CH-16.69.
C-28	R-20', D-90°, A-31.42, T-20', CH-28.28.
C-29	R-6.19, D-125°28'00", A-13.54, T-12', CH-11.00.
C-30	R-23.283, D-54°32'00", A-22.16', T-12', CH-21.33'.
C-31	R-6.19', D-125°28'00", A-13.54, T-12, CH-11.00.
C-32	R-50', D-0°17'35", A-87.38, CH- N 70°46'40" W, 46.63'.
C-33	R-50', D-90°45'06", A-80.98, CH- N 26°57'24" W, 72.39'.
C-34	R-50', D-87°18'06", A-76.18, CH- N 63°00'56" E, 68.99'.
C-35	R-50', D-73°00'14", A-46.79, CH- N 42°22'10" E, 48.60'.
C-37A	SEE MAHONEY CIRCLE.

LESSER TRACTS, TO BE ABSORBED PRIOR TO FILING

TRACT (L)	0.242 AC.	LOT 34
TRACT (M)	0.432 AC.	LOT 34
TRACT (O)	0.173 AC.	LOT 34
TRACT (P)	0.392 AC.	LOT 47
TRACT (Q)	0.412 AC.	LOT 47
TRACT (N)	2.094 AC.	LOT 34
TRACT (S)	0.024 AC.	TRACT E
TRACT (T)	0.103 AC.	TRACT E
TRACT (U)	1.956 AC.	LOT 47 & TRACT E

BACKMAN VILLAGE SUBDIVISION TOWN OF TELLURIDE

SURVEY

OF TELLURIDE COMPANY AND
SIMONIUS-VISCHER PROPERTIES
WITHIN THE SUBDIVISION TOGETHER
WITH ADJACENT PROPERTIES.

SHEET 2 OF 6

N
SCALE: 1 INCH=50 FEET

Wayne Iverson, CHAIRPERSON
PLANNING & ZONING COMMISSION

NOTE HERE: THE TELLURIDE COMPANY HAS NO INTENTION TO
FLAT OR SUBDIVIDE PROPERTIES INCLUDED IN THIS SURVEY
BUT NOT WITHIN THE BACKMAN VILLAGE SUBDIVISION AS
DRAWN AND DESCRIBED ON SHEET 1 OF THIS PLAT. SURVEY
SHOWS THE ENTIRE OWNERSHIP OF THE TELLURIDE COMPANY
WITHIN THE TOWN OF TELLURIDE AT THE TIME OF FILING
AND IS RECORDED IN THE RECORDS OF THE CLERK AND
RECORDS OF SAN JUAN COUNTY, COLORADO, FOR
FUTURE REFERENCE.

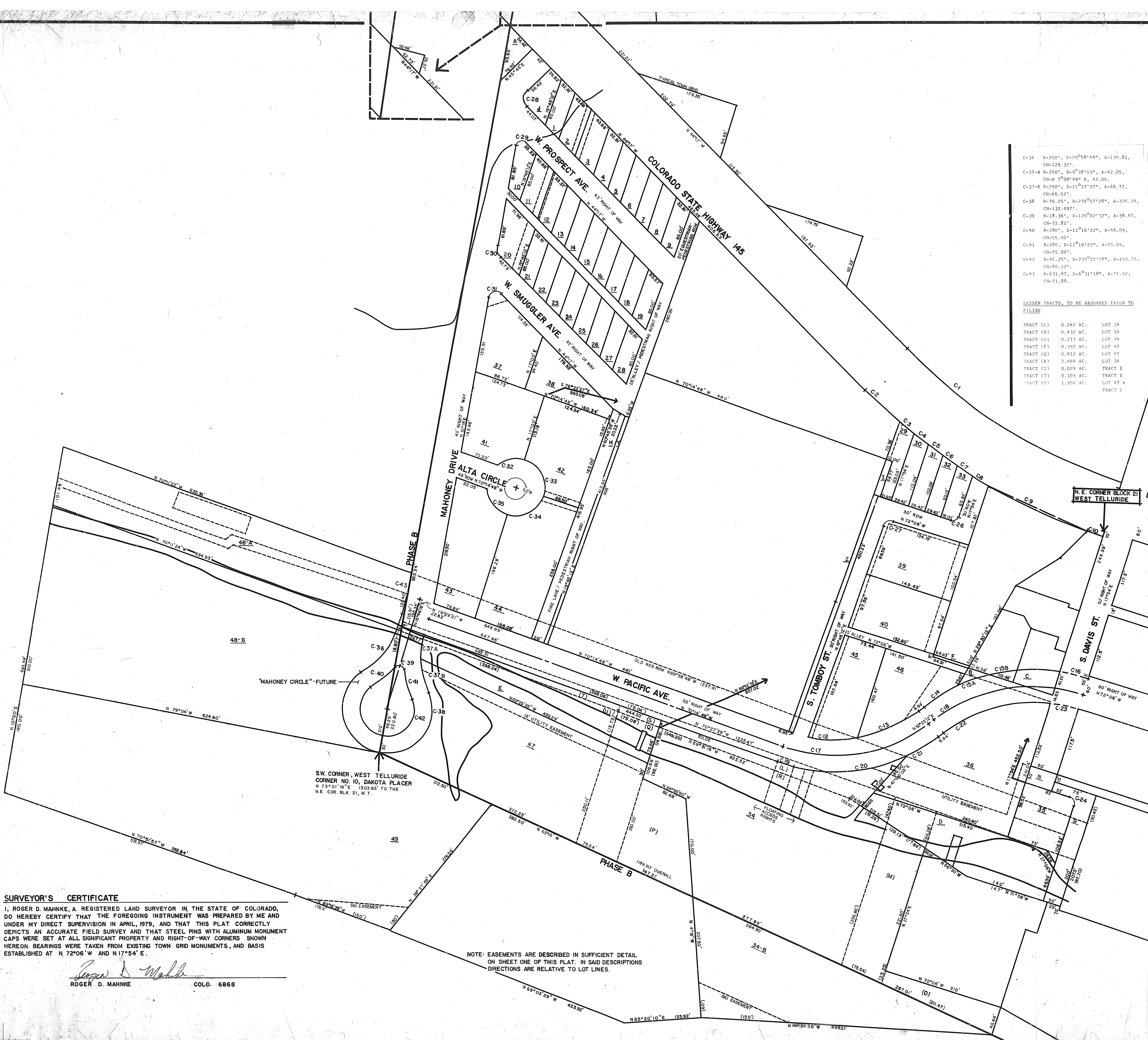
SURVEYOR'S CERTIFICATE

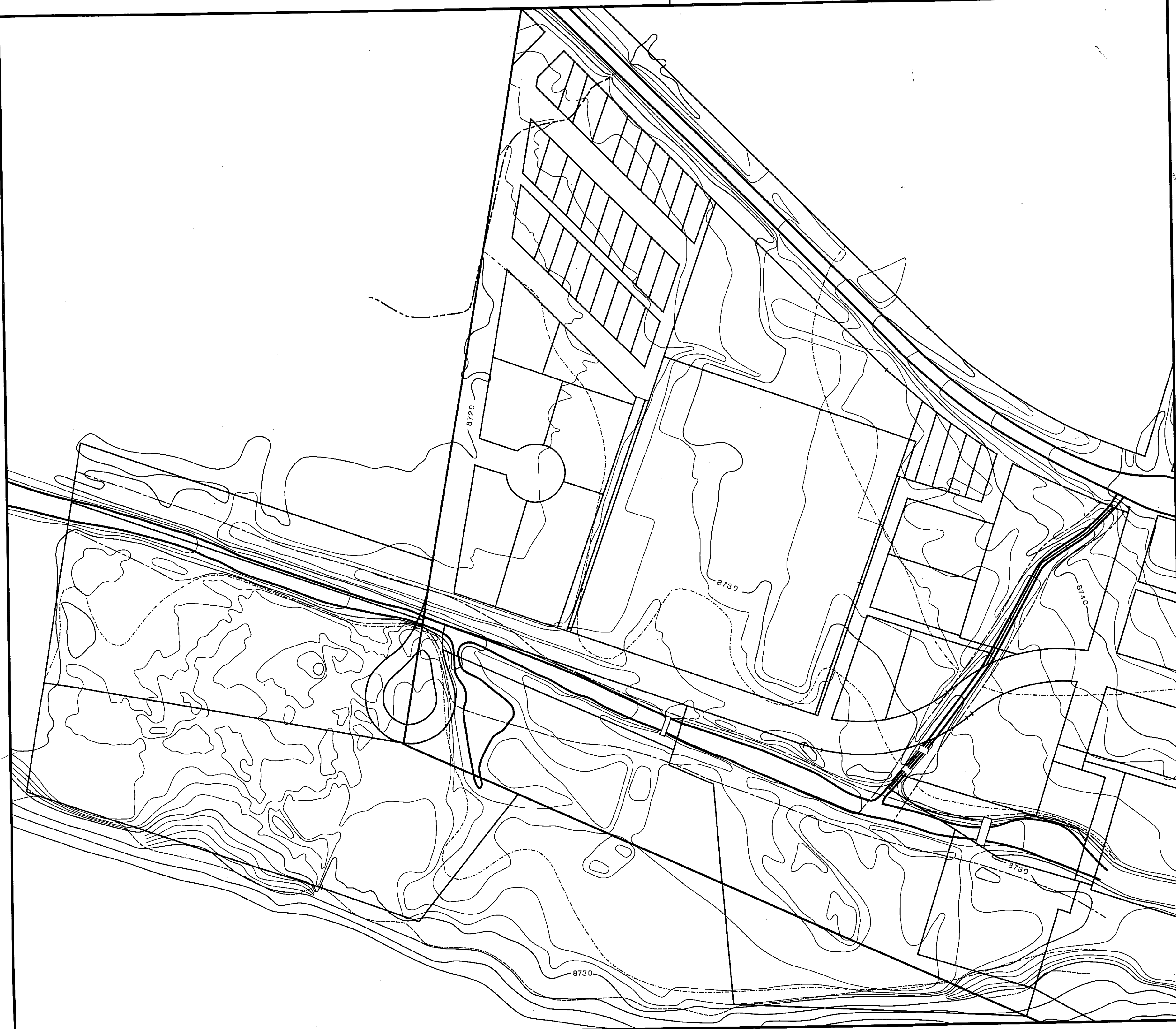
I, ROGER D. MAHNKE, A REGISTERED LAND SURVEYOR IN THE STATE OF COLORADO,
DO HEREBY CERTIFY THAT THE FOREGOING INSTRUMENT WAS PREPARED BY ME AND
UNDER MY DIRECT SUPERVISION IN APRIL, 1979, AND THAT THIS PLAT CORRECTLY
DEPICTS AN ACCURATE FIELD SURVEY AND THAT STEEL PINS WITH ALUMINUM MONUMENT
CAPS WERE SET AT ALL SIGNIFICANT PROPERTY AND RIGHT-OF-WAY CORNERS SHOWN
HEREON. BEARINGS WERE TAKEN FROM EXISTING TOWN GRID MONUMENTS, AND BASIS
ESTABLISHED AT N 72°06' W AND N 17°54' E.

Roger D. Mahnke
ROGER D. MAHNKE

COLO. 6868

NOTE: EASEMENTS ARE DESCRIBED IN SUFFICIENT DETAIL
ON SHEET ONE OF THIS PLAT. IN SAID DESCRIPTIONS
DIRECTIONS ARE RELATIVE TO LOT LINES.





Wayne Verna, CHAIRPERSON
PLANNING & ZONING COMMISSION

**BACKMAN
VILLAGE
SUBDIVISION**
TOWN OF TELLURIDE

**EXISTING
TOPOGRAPHY**
CONTOURS FROM COLORADO WATER
CONSERVATION BOARD AERIAL
SURVEY, 1975

SHEET 3 OF 6

N
↑
SCALE: 1 INCH = 100 FEET

LEGEND

- 10 FOOT CONTOUR
- 2 FOOT CONTOUR
- SUBDIVISION LOT LINE
- RIVER BANK
- 100 YEAR FLOODWAY
- 100 YEAR FLOODPLAIN
- EXISTING DRAINAGE
- GEOLOGIC HAZARD (TOWN)
- 50% SLOPE (COUNTY)

I, Thomas E. Hoffmeyer, hereby certify that I am a duly licensed Professional Engineer in the State of Colorado, and that I am the author of the above and foregoing plan, and that I am not aware of any other person who has been or is about to be engaged in the preparation of the same.

Thomas E. Hoffmeyer
Professional Engineer
No. 10,000

I, Wayne Sherr, hereby certify that I am a duly licensed Professional Engineer in the State of Colorado, and that I am the author of the above and foregoing plan, and that I am not aware of any other person who has been or is about to be engaged in the preparation of the same.

Wayne Sherr
Professional Engineer
No. 10,000



Wayne Sherr, CHAIRPERSON
PLANNING & ZONING COMMISSION

BACKMAN VILLAGE SUBDIVISION TOWN OF TELLURIDE

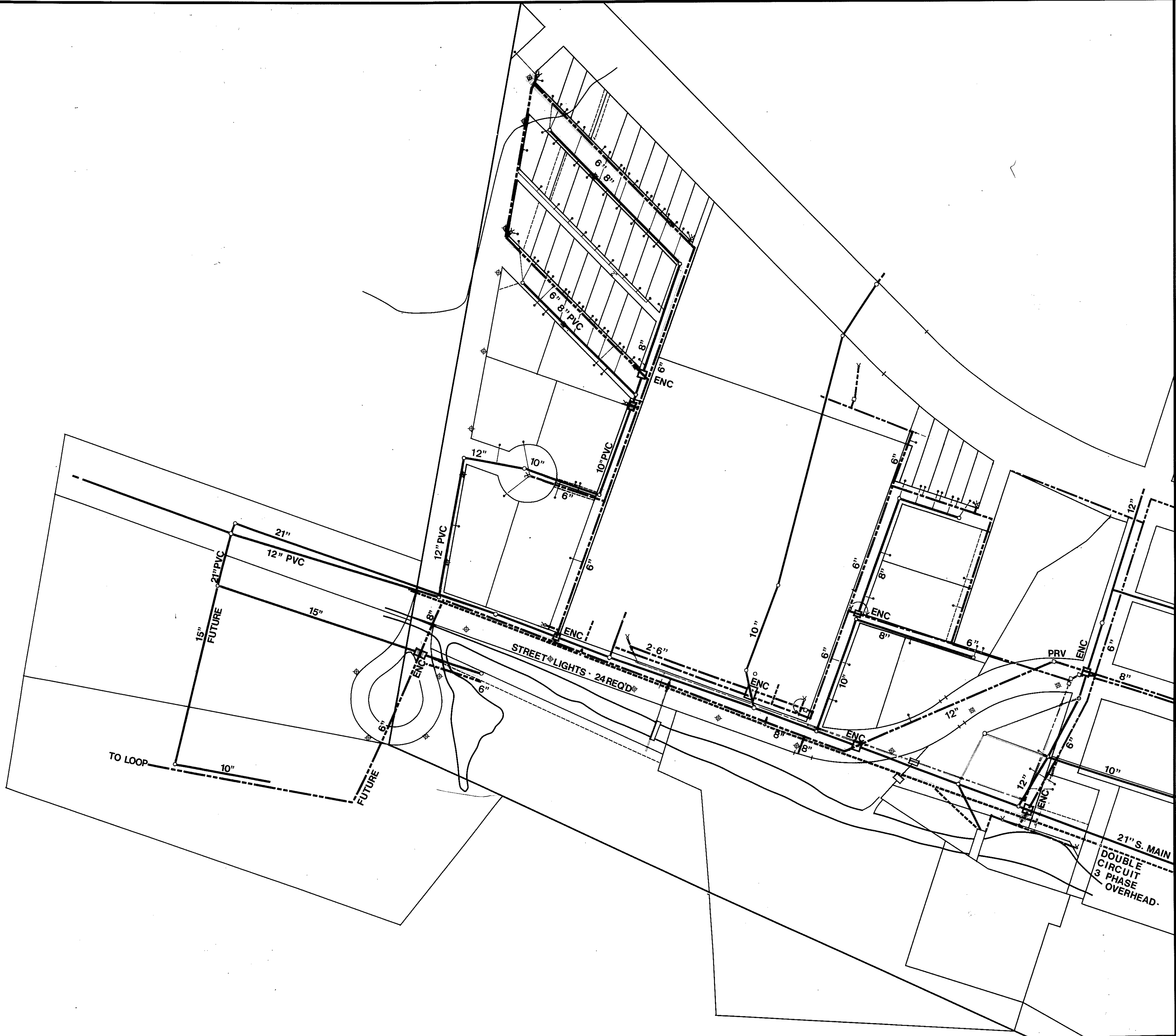
UTILITY PLAN AND EASEMENTS

SHEET 4 OF 6

N
SCALE: 1 INCH = 100 FEET

LEGEND

- SEWER
- WATER DUCTILE IRON
- ELECTRIC
- FIRE HYDRANT 6"
- MANHOLE
- FIXTURE PRV. METER
- ABANDONED
- NEW LINE / TRENCH
- ENCASEMENT



1. This plan shows the proposed location of the proposed road and the proposed location of the proposed bridge. It is to be used in conjunction with the proposed subdivision map and the proposed road map.



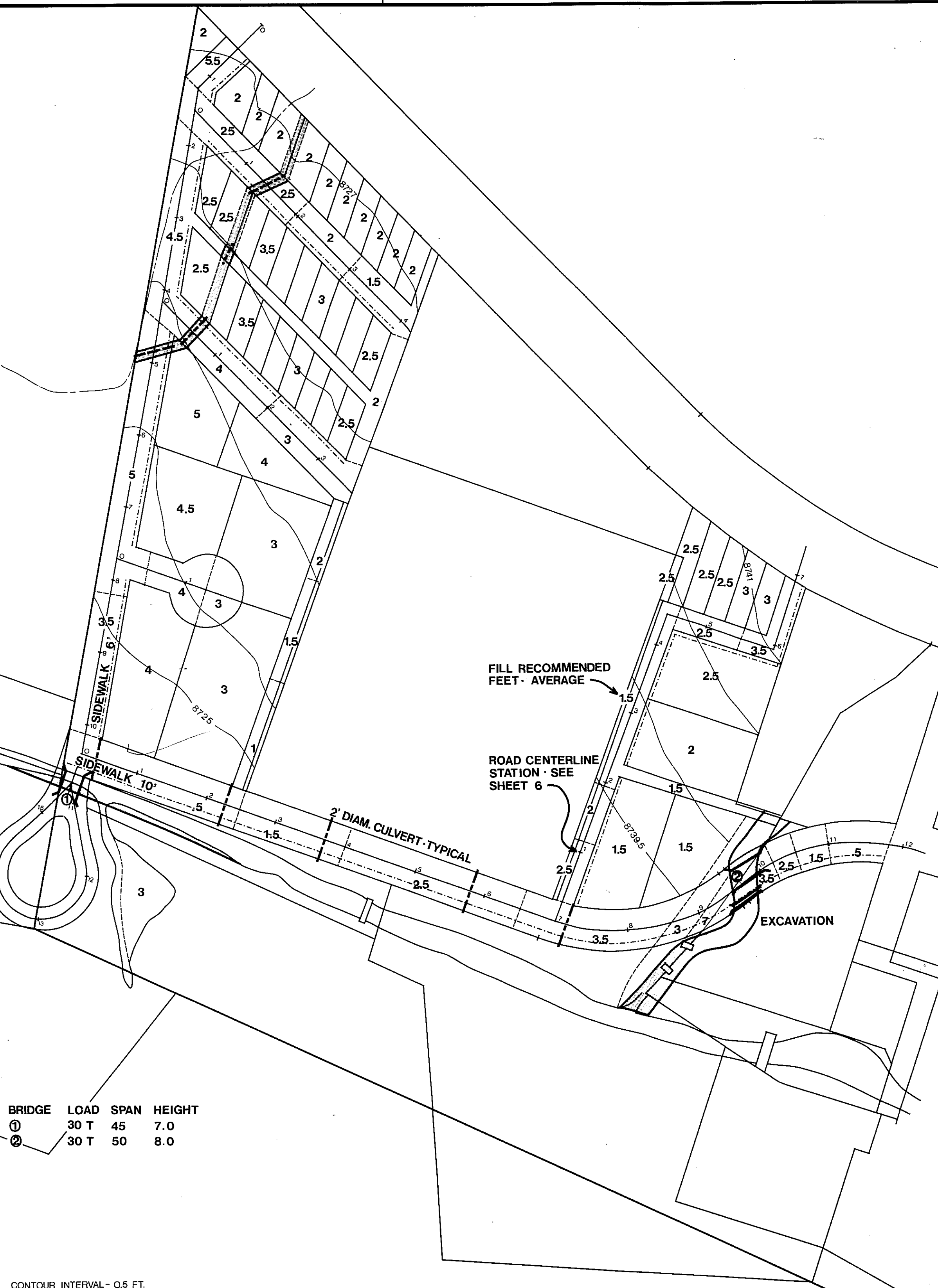
Wayne Brown, CHAIRPERSON
PLANNING & ZONING COMMISSION

BACKMAN VILLAGE SUBDIVISION TOWN OF TELLURIDE

GRADE AND FILL PLAN, ROAD STATION KEY.

SHEET 5 OF 6

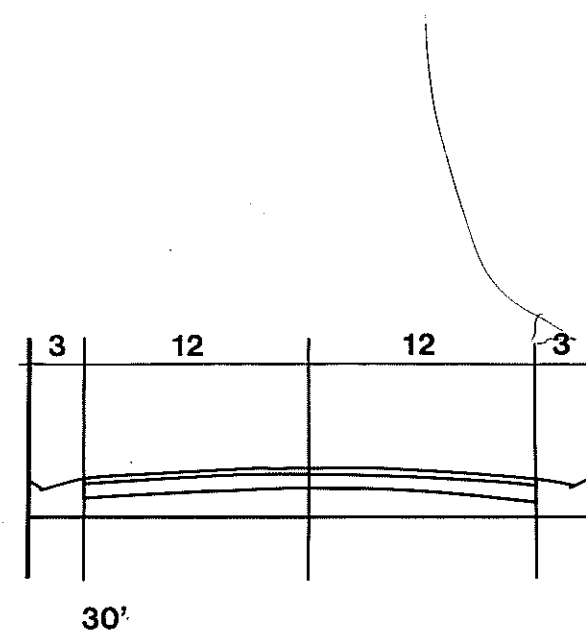
N
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SCALE: 1 INCH = 100 FEET



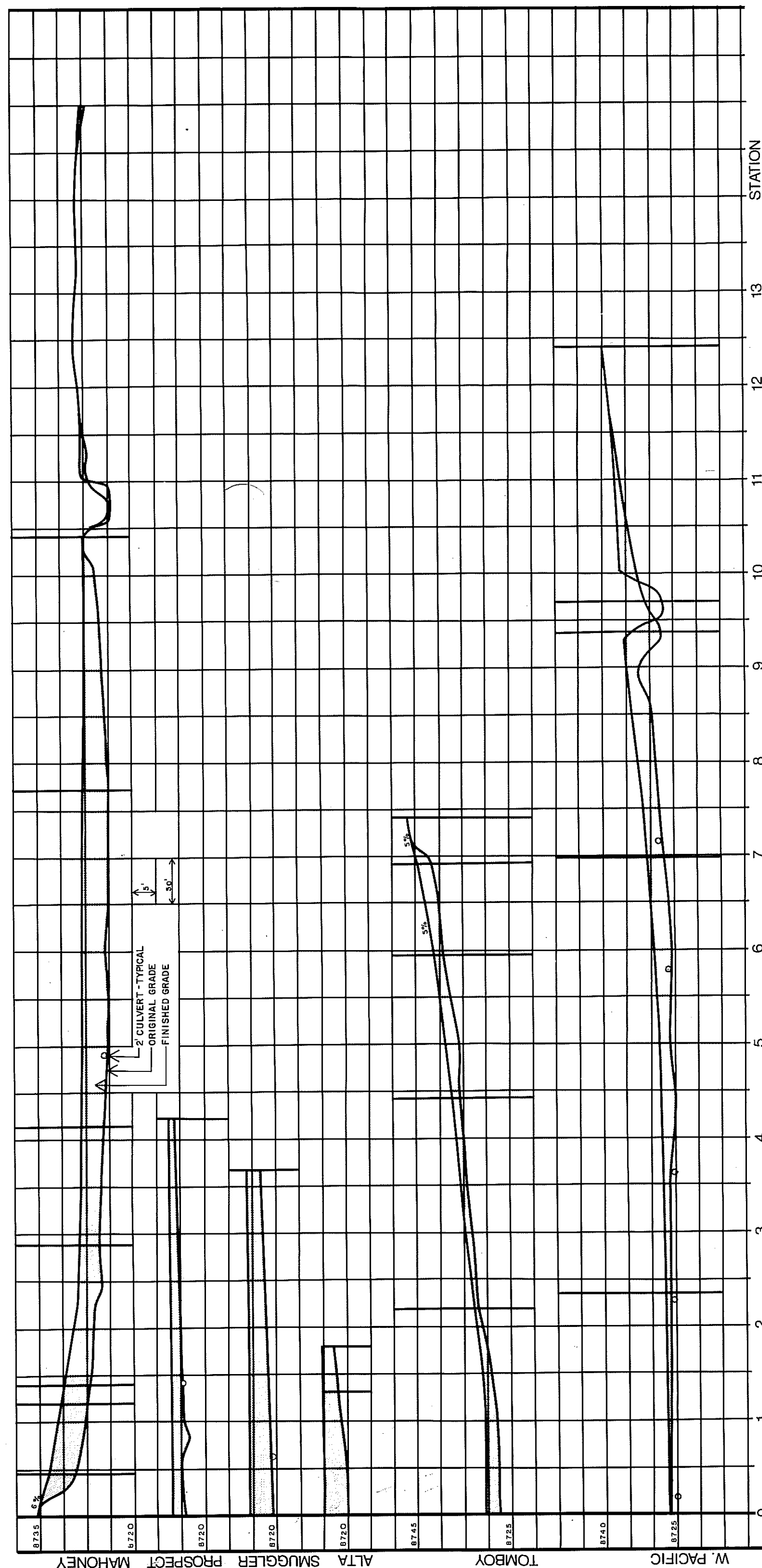
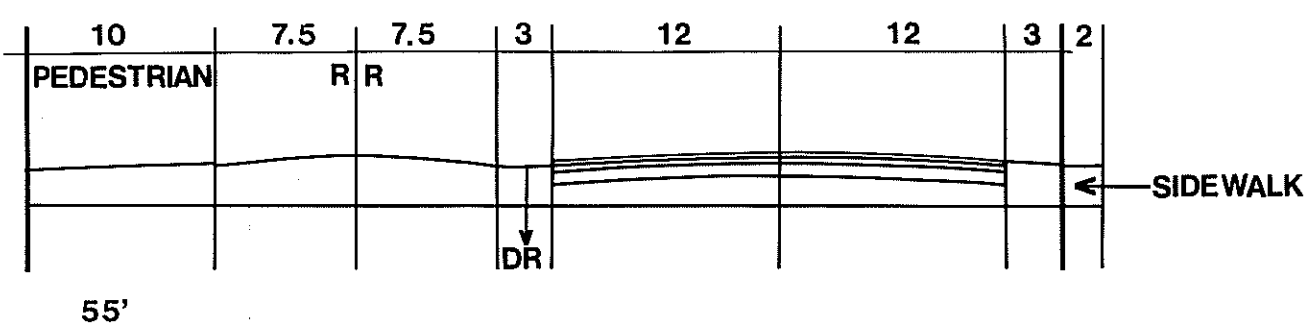
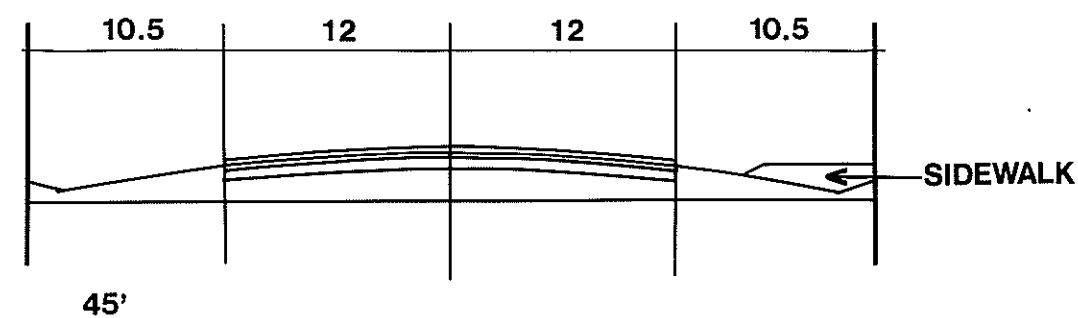
BRIDGE	LOAD	SPAN	HEIGHT
①	30 T	45	7.0
②	30 T	50	8.0

CONTOUR INTERVAL - 0.5 FT.

NOTE: SEE EXHIBIT C, PUBLIC IMPROVEMENTS CONTRACT
FOR REVISIONS AS OF 6-28-79



SUB BASE - COMPACTED
BASE - 8" OF 2" MINUS
SURFACE - 4" OF 3/4"
UNWASHED
ALL CROWNS - 5"
WHEN APPROVED:
2" HOT-LAID MAT



It is hereby certified that the above is a true and correct copy of the original as filed in the office of the County Clerk of the County of San Juan, New Mexico, on this 1st day of July, 1979.



Wayne L. Larson, CHAIRPERSON
PLANNING & ZONING COMMISSION

BACKMAN VILLAGE SUBDIVISION TOWN OF TELLURIDE

ROAD
PROFILES
AND
SECTIONS
REFERENCED TO SHEET 5
SHEET 6 OF 6

SCALE: 1 INCH = 100 FEET
LATERAL